

Ramanand Yadav Alias Rama Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 December 2019 · WRIT - C No. 39437 of 2019 · **Writ disposed; petitioner to appear before Executive Engineer with objections; speaking final order within four weeks; coercive recovery stayed; Section 127 appeal if aggrieved.**

HEADNOTE

Where a consumer missed the time to object to an electricity demand and faced a recovery citation, the High Court, taking a lenient view, directed him to appear before the Executive Engineer with his objection and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for seven weeks or until disposal of the objection, revived the citation on non-appearance, and left any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003, without deciding the assessment on merits.

FACTUAL SUMMARY

Ramanand Yadav challenged a recovery citation dated 20 November 2019 and a departmental notice dated 21 May 2019, seeking certiorari and a mandamus restraining recovery. He submitted that unusual circumstances prevented him from filing his objection in time, and that the electricity department was taking coercive steps without a further hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the department was heard. The High Court did not examine the demand on merits.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking final order then section 127 appeal

HOLDING

A writ against a recovery citation and assessment notice, where the consumer failed to object in time, is disposed of by directing him to appear before the Executive Engineer with objection and evidence; the Engineer shall pass a speaking and reasoned final order within four weeks; coercive recovery is stayed for seven weeks or until disposal of the objection, vacating on default, and the citation revives if he fails to appear; any grievance against that final order lies in an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 20.11.2019 AND THE NOTICE DATED 21.05.2019

Neither instrument was quashed or upheld; the writ was disposed of with a hearing direction. ¶ 1

NOT DECIDED — COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

Alleged by the petitioner; not examined. ¶ 1

NOT DECIDED — MERITS OF THE UNDERLYING ELECTRICITY DEMAND

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